CHAPTER 5

LEGISLATURE

CHAPTER ESSENCE AT A GLANCE:
Examine bicameralism, comparative powers of Lok Sabha and Rajya Sabha, the legislative lawmaking process, parliamentary oversight mechanisms, and the anti-defection law.

4 CORE PRINCIPLES TO UNDERSTAND FIRST

• **Rationale for Bicameralism:** A bicameral legislature provides representation to constituent federal units in the upper house, ensures double scrutiny of bills to prevent hasty legislation, and facilitates inclusion of experienced experts and statesmen.

• **Comparative Powers of Lok Sabha and Rajya Sabha:** While the Lok Sabha holds exclusive authority over Money Bills and executive survival through No-Confidence motions, the Rajya Sabha possesses unique federal powers under Articles 249 and 312 to safeguard state interests.

• **Instruments of Parliamentary Oversight:** Parliament holds ministers accountable through Question Hour, Zero Hour, Calling Attention notices, adjournment motions, financial scrutiny, and specialized Parliamentary Standing Committees.

• **Anti-Defection Framework under the Tenth Schedule:** Introduced by the 52nd Constitutional Amendment in 1985, the Tenth Schedule disqualifies legislators who voluntarily give up party membership or vote contrary to party whip, curbing political opportunism.

ESSENTIAL FORMULAS & GOVERNING EQUATIONS

$$\text{Enacted Statute} \Leftrightarrow \text{Introduction} \rightarrow \text{Three Readings} \rightarrow \text{Committee Scrutiny} \rightarrow \text{Presidential Assent}$$

Standard constitutional journey of an ordinary bill through Parliament

$$\text{Money Bill Enactment} \Rightarrow \text{Lok Sabha Monopoly} \rightarrow \text{Rajya Sabha (14 Days Delay Max, No Veto)}$$

Absolute supremacy of the directly elected lower house over public finance

CRUCIAL EXAM PRECAUTIONS & VALUATION RUBRIC SECRETS

• **Alert:** The Rajya Sabha cannot amend or reject a Money Bill; it can only suggest recommendations within 14 days, which the Lok Sabha may accept or completely reject.

• **Alert:** Disqualification decisions under the Tenth Schedule are made by the Presiding Officer (Speaker or Chairman), and these decisions are subject to judicial review as per the Kihoto Hollohan verdict.

HIGH-YIELD CENTUM QUESTIONS & STEP-BY-STEP EXPLANATIONS

1. Give two reasons why the framers of the Indian Constitution chose a bicameral legislature at the national level. [Score: 2 Marks]

Answer & Key Valuation Steps:

• **Federal Representation:** It ensures that the constituent States and Union Territories have dedicated representation through the Rajya Sabha. **[1 Mark]**

• **Double Scrutiny:** It prevents hasty, ill-considered, or emotionally charged legislation by requiring every bill to be debated and reconsidered by a second chamber. **[1 Mark]**

2. What is Question Hour? Explain how it serves as an effective instrument of democratic accountability. [Score: 3 Marks]

Answer & Key Valuation Steps:

• **Definition and Schedule:** Question Hour is the first hour of every parliamentary sitting where members ask questions to ministers regarding government administration. **[1 Mark]**

• **Information Retrieval:** It forces ministries to disclose facts, explain policy delays, and provide verified statistical records to representatives. **[1 Mark]**

• **Executive Scrutiny:** Sharp supplementary questions expose bureaucratic inefficiency, corruption, and policy failures, keeping the executive constantly on its toes. **[1 Mark]**

3. Explain four special powers of the Rajya Sabha that highlight its role as the federal council of states. [Score: 4 Marks]

Answer & Key Valuation Steps:

• **1. Article 249 Authorization:** Rajya Sabha can authorize Parliament to make laws on a subject enumerated in the State List in the national interest by a two-thirds majority. **[1 Mark]**

• **2. Article 312 All-India Services:** Can authorize the creation of one or more new All-India Services common to the Union and the States through a special resolution. **[1 Mark]**

• **3. Equal Amending Authority:** Exercises equal powers with Lok Sabha in constitutional amendments; a constitutional amendment bill fails if rejected by Rajya Sabha. **[1 Mark]**

• **4. Emergency Approvals:** If Lok Sabha is dissolved during a national emergency, Rajya Sabha alone can approve the proclamation of emergency. **[1 Mark]**

4. Describe the main stages through which an ordinary bill passes before it becomes an Act of Parliament. [Score: 4 Marks]

Answer & Key Valuation Steps:

• **1. First Reading:** Introduction of the bill in either House of Parliament by a minister or private member, along with reading of its title and statement of objects. **[1 Mark]**

• **2. Second Reading (Committee and Clause Stage):** General discussion followed by detailed clause-by-clause scrutiny, amendments, and reference to a Select or Standing Committee. **[1 Mark]**

• **3. Third Reading:** The bill is voted upon as a whole; members debate whether to accept or reject the bill in its final amended form without introducing new clauses. **[1 Mark]**

• **4. Second House and Presidential Assent:** Transmitted to the other House for identical passage; once passed by both Houses, it is sent to the President for assent. **[1 Mark]**

5. Discuss how Parliament exercises financial control over the government through the budget and parliamentary committees. [Score: 5 Marks]

Answer & Key Valuation Steps:

• **Constitutional Budget Requirement:** Under Article 112, no tax can be levied and no public expenditure incurred without explicit authorization from Parliament. **[1 Mark]**

• **Scrutiny of Demands for Grants:** Members scrutinize ministry-wise expenditure plans and propose cut motions (Policy Cut, Economy Cut, Token Cut) to express disapproval. **[1 Mark]**

• **Departmentally Related Standing Committees:** Examine budgetary demands for grants in depth during recess, reporting on efficiency and expenditure patterns. **[1 Mark]**

• **Public Accounts Committee (PAC):** Chaired conventionally by an opposition leader, it scrutinizes the audit reports of the Comptroller and Auditor General (CAG) to identify financial irregularities. **[1 Mark]**

• **Estimates Committee:** Suggests alternative policies and economies in public expenditure, ensuring value for taxpayers money. **[1 Mark]**

6. Analyze the objectives, key provisions, and limitations of the Anti-Defection Law contained in the Tenth Schedule of the Constitution. [Score: 6 Marks]

Answer & Key Valuation Steps:

• **Historical Objective:** Enacted by the 52nd Constitutional Amendment Act in 1985 to curb unprincipled party-hopping and corruption in Indian politics. **[1 Mark]**

• **Grounds for Disqualification:** A member is disqualified if they voluntarily resign from their party or vote against party directions (whip) without prior authorization. **[1.5 Marks]**

• **Independent and Nominated Members:** An independent member is disqualified if they join any political party; a nominated member is disqualified if they join a party after six months. **[1 Mark]**

• **Adjudicating Authority:** The Speaker or Chairman of the House decides disqualification petitions, subject to judicial review established in the Kihoto Hollohan case. **[1 Mark]**

• **Major Limitations:** The law stifles internal party debate, forces legislators to blindly follow party leadership on non-critical votes, and presiding officers have sometimes delayed decisions for partisan advantage. **[1.5 Marks]**